

GA-HR-03

Sick Leave & Prevention of Abuse

Sick-leave entitlement, notification, medical certificates, confidentiality, and fair action where misuse is suspected.

APPLIES TO

Gardner Academy employees and relevant staff

AUTHORITY

Labour Act 11 of 2007 section 24; Employment Contract clause 7.3 and Annexure D

01 Purpose and entitlement

Paid sick leave is for an employee who is genuinely unable to work because of illness or injury. Employees receive sick leave in accordance with the Labour Act, applicable wage orders, the employment contract, and Annexure D.

02 Notification

An employee who cannot attend work because of illness must notify the employer or immediate supervisor as soon as possible and no less than two hours before the scheduled workday. Failure to notify may result in the absence being treated as unauthorised leave.

03 Medical certificates

Employees must provide a medical certificate from a registered medical practitioner for sick leave of more than two consecutive working days, repeated sick-leave patterns including frequent Monday or Friday absences, or sick leave suspected to be abused. Medical certificates may be verified where abuse is suspected.

04 Monday and Friday absences

Repeated sick leave on Mondays or Fridays may be reviewed as a possible pattern of abuse. An employee may be required to provide a medical certificate for a Monday or Friday absence, particularly where a pattern has been observed. Repeated Monday or Friday absences without valid medical justification may be treated as misconduct.

Abuse of sick leave

Abuse includes false or misleading medical information, using sick leave for a non-medical purpose, repeated suspicious absence patterns, or failure to follow notification procedures. Abuse constitutes misconduct and may result in action under the Disciplinary Code and Procedure.

Confidentiality

Employees must submit medical information only through the approved confidential process and must not disclose another employee's medical information. The duty of confidentiality applies to anyone who receives such information through their role.